

PLJ 2021 Lahore 507 (DB)
[Multan Bench, Multan]

Present: CH. MUHAMMAD IQBAL AND JAWAD HASSAN, JJ.

Sheikh TANVEER AHMAD--Appellant

versus

UNITED BANK LIMITED--Respondent

R.F.A. No. 182 of 2018, heard on 2.3.2021.

Financial Institutions (Recovery of Finances) Ordinance, 2001 (XLVI of 2001)--

---Ss. 22 & 10--Suit for recovery--Decreed--Application for grant of unconditional leave--Dismissed--Banking facility--Credit card limit--Outstanding amount--Challenge to--It evinces from record that Respondent Bank had appended with suit all relevant documents which were executed between parties and that were not denied, therefore, Banking Court after appreciating grounds taken by Appellant in application under Section 10 of Ordinance as well as all documents available on record, has passed impugned judgment and decree, as such no exception can be made to it--We have considered leave to defend filed by Appellant wherein he has generally denied all allegations without any cogent reasons--Section 10(4) of Ordinance specifically states about amount of finance under Section 10(4)(a)(b)(c)(d) which he has failed to mention in his leave to defend Banking Court under Section 10 of Ordinance, after hearing parties, has option to reject leave to defend and pass judgment--We, therefore, fully agree with findings of Banking Court and do not find any illegality in impugned judgment and decree which has been passed in consonance with spirit of law, hence, does not call for interference by us--Appeal dismissed.

[P. 509] A, C & D

Financial Institutions (Recovery of Finances) Ordinance, 2001 (XLVI of 2001)--

---S. 10(3)--Application for leave to defend--Application for leave to defend shall be in form of a written statement, which shall be summary of substantial questions of law and facts. [P. 509] B

Ch. Muhammad Aslam Jatt, Advocate for Appellant.

Ch. Saleem Akhtar Warraich, Advocate for Respondent-Bank.

Date of hearing: 2.3.2021.

JUDGMENT

Jawad Hassan, J.-- Through this Appeal, filed under Section 22 of the Financial Institutions (Recovery of Finances) Ordinance, 2001 (the "Ordinance"), the Appellant has challenged the validity of the judgment and decree dated 23.04.2018 passed by the Judge Banking Court-III, Multan (the "Banking Court") whereby the Petition for Leave to Defend was dismissed and the suit filed by the Respondent Bank was decreed.

2. Precise facts of the case are that the Respondent Bank filed a suit against the Appellant for recovery of a sum of Rs. 2,70,179.67. The Appellant appeared and filed application under Section 10 of the Ordinance for grant of unconditional leave (the "PLA") to defend the suit. The said petition for leave to appear and defend the suit was dismissed and resultantly the suit was decreed by the Banking Court vide the impugned judgment and decree to the tune of Rs. 2,70,179.67 with costs in favour of the Respondent Bank and against the Appellant. Hence, this appeal.

3. Learned counsel for the Appellant inter alia contended that the impugned judgment and decree is against the law and facts; that the Banking Court has passed the impugned judgment and decree in a hasty manner without applying its Judicial Mind; that the documents appended with the record have not been duly taken into consideration, as such there is misreading and non-reading of material available on record; that the impugned judgment and decree is sketchy in nature; that the Banking Court has failed to take into consideration the fact that application of the Appellant for grant of credit card was rejected by the Respondent Bank; that the matter required evidence by both the parties, as such the PLA should have been allowed.

4. On the other hand, learned counsel for the Respondent Bank supported the impugned judgment and decree and submitted that all the documents were executed and duly signed by the Appellant as such the impugned judgment and decree has been passed strictly in accordance with law and does not require any interference by this Court.

5. We have heard the arguments of the learned counsel for the parties and perused the record.

6. One of the contention of the Appellant is that the Banking Court has not taken into consideration that credit card limit was upto Rs. 2,00,000/- but has decreed the suit of the Respondent Bank to the tune of Rs. 2,70,179.67 as such the impugned judgment and decree is not sustainable in the eye of law. The bare examination of the record reveals that the Respondent Bank filed a suit for recovery against the Appellants in the sum of Rs. 2,70,179.67 as on 23.07.2015 on account of banking facility/credit card alongwith fee charges of 3% per month of outstanding amount coupled with late payment charges @ 10% from the date of filing of suit till realization of the amount. But the Banking Court in the impugned judgment and decree specifically observed that "the defendant deposited Rs. 2,601.36 on 28.06.2014 and on the said date, a sum of Rs. 2,70,179.67 was the balance amount outstanding against defendant". So this ground of the Appellant is not tenable hence turned down.

7. It evinces from record that the Respondent Bank had appended with the suit all the relevant documents which were executed between the parties and that were not denied, therefore, the Banking Court after appreciating the grounds taken by the Appellant in the application under Section 10 of the Ordinance as well as all the documents available on record, has passed the impugned judgment and decree, as such no exception can be made to it.

8. Moreover, the Appellant had all the opportunity to defend his case before the Banking Court under Section 10 of the Ordinance. Section 10(3) of the Ordinance clearly states that the application for leave to defend shall be in the form of a written statement, which shall be summary of the substantial questions of law and facts. Section 10(3) of the Ordinance clearly provides that leave to defend shall also be in such form which contain a summary of the substantial questions of law as well as fact in respect of which evidence needs to be recorded and it should be filed according to Section 10(4) of the Ordinance. This solid ground to defend his case was available to the Appellant having all the opportunity to file necessary documents to prove his case after recording of evidence before the Banking Court, then leave, might be granted to him. But in this case, we have considered the leave to defend filed by the Appellant wherein he has generally denied all the allegations without any cogent reasons. Section. 10(4) of the Ordinance specifically states about amount of finance under Section 10(4)(a)(b)(c)(d) which he has failed to mention in his leave to defend The Banking Court under Section 10 of the Ordinance, after hearing the parties, has the option to reject the leave to defend and pass the judgment.

9. We, therefore, fully agree with the findings of the Banking Court and do not find any illegality in the impugned judgment and decree which has been passed in consonance with the spirit of law, hence, does not call for interference by us.

10. In the above circumstances, this Appeal, being devoid of any merit, is hereby dismissed with no orders as to cost.

(Y.A.)